

21STCP03001 21STCP03001

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 21STCP03001 Hearing Date: September 8, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Sarah Key,

Plaintiff,

v.

Hidden Hills Community

Association, et al.

Defendants.

Case Number Department

21STCP03001 107

COURT'S [TENTATIVE]

ORDER RE:

Motion

for Attorneys' Fees

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Grant

I.

BACKGROUND

On

September 13, 2021, Petitioner Sarah Key ("Key") filed a petition for writ mandate and injunction against Respondents Hidden Hills Community Association ("Hidden Hills") and Does 1 through 25.

On

April 14, 2022, the court granted Hidden Hills' motion to compel arbitration of all claims against it under the bylaws and stayed the case against Hidden Hills pending the completion of arbitration. (04/14/22 Minute Order.)

On

April 18, 2022, Key filed a first amended petition against Respondents Hidden Hills, Land Mark Electric, Inc., and Does 1 through 25.

On

May 14, 2024, the court entered judgment confirming arbitral award.

On

February 27, 2026, the Court of Appeal issued an opinion affirming the judgment. (Opinion p. 29.)

On

July 15, 2026, Hidden Hills filed a motion for attorneys' fees on appeal (the "Motion"). On August 14, 2026, Key filed an opposition. On August 20, 2026, Hidden Hills filed a reply.

II.

REQUESTS FOR JUDICIAL NOTICE

Key

requests the court take judicial notice of three minute orders and a notice of

ruling filed in this action. (Key Requests for Judicial Notice pp. 1-2.)

The
court need not take judicial notice of documents filed in this matter. Key's
requests are denied.

Hidden

Hills requests the court take judicial notice of the following documents:

1.

Sarah Plott Key's Notice of Motion and Motion for
Award of Attorney Fees on Appeal; Memorandum of Points and Authorities;
Declarations of Margaret M. Grignon Jonathan A. Wershow in Support Thereof
filed on February 5, 2024 in the case entitled Law Finance Group, LLC v.
Sarah Plott Key, LASC Case No. 19STCP04251.

2.

Court Minute Order (Ruling on Submitted Matter Re:
Motion for Attorneys' Fees for Appellate Work) entered on April 19, 2024 in the
case entitled Law Finance Group, LLC v. Sarah Plott Key, LASC Case No.
19STCP04251.

The
court grants Hidden Hills' requests and takes judicial notice of these
documents as court records. (Evid. Code, § 452, subd. (d).)

III.

DEPARTMENT 85

In
opposition, Key argues this matter is still assigned to Department 85 and the
Motion should be heard in Department 85. (Opposition pp. 6-7.)

In
reply, Hidden Hills argues the Motion was properly noticed in Department 107
and Key is engaging in improper gamesmanship by arguing the Motion should have
been filed in Department 85. (Reply pp. 8-9.)

The
May 21, 2024, Minute Order states: "[b]y order of the Supervising Judge, the

above-entitled action is now and shall be reassigned to Judge Eric P. Harmon in Department 107, Van Nuys Courthouse West as an Individual Calendar (IC), direct calendaring judge for all purposes, including trial." Having been assigned to Department 107 for all purposes, the court finds Hidden Hills properly filed the Motion in Department 107.

Further,

Key filed her Motion to Tax Costs in Department 107 and opposed Hidden Hills' argument the Motion to Tax Costs should have been filed in Department 85. Specifically, Key stated in the reply to Hidden Hills' opposition to the Motion to Tax Costs that "[t]his case is presently assigned to this Court that is why the hearing is set in this Court. That is clear from the Docket as well as any effort to set a motion is directed to this Court." (Motion to Tax Costs Reply p. 7.) The court finds Key's present argument that Hidden Hills improperly filed the Motion in Department 107 to be disingenuous.

IV.

ENTITLEMENT TO ATTORNEYS' FEES AS COSTS ON APPEAL

In

opposition, Key argues the Motion should be denied because the Court of Appeal awarded only costs on appeal, and costs on appeal do not include attorneys' fees. (Opposition p. 10.)

In

reply, Hidden Hills argues the costs award includes attorneys' fees. (Reply pp. 2-7.)

Code

of Civil Procedure section 1034, subdivision (b) states "[t]he Judicial Council shall establish by rule allowable costs on appeal and the procedure for claiming those costs." California Rules of Court, rule 8.278(d)(2) provides: "[u]nless the court orders otherwise, an award of costs neither includes attorney's fees on appeal nor precludes a party from seeking them under rule 3.1702."

Key

cites *Stratton v. Beck* ("Stratton") (2018) 30 Cal.App.5th 901, 910-911 for the proposition "[u]nder California law, an award of 'costs on appeal' by the Court of Appeal does not include attorney's fees, unless the

appellate court explicitly orders otherwise.” (Opposition p. 10.)

In

Stratton, the Court of Appeal stated:

Rule 8.278(d)(2) further

underscores the distinction between trial costs, which may include attorney fees, and appellate costs, which do not. It provides, “Unless the court orders otherwise, an award of costs neither includes attorney’s fees on appeal nor precludes a party from seeking them

under rule 3.1702.” The plain meaning of rule 8.278(d)(2) is

that an award of costs in the Court of Appeal generally has no bearing on a party’s ability to seek appellate attorney fees in the trial court. Indeed, a

leading treatise instructs, “Unless an appellate decision expressly awards or denies fees, any decision on allocation of appellate costs is

irrelevant to a later motion for fees in the trial court.” (Pearl, Cal.

Attorney Fee Awards (Cont.Ed.Bar 2d ed. 2018) Obtaining Fees for Appellate Services, § 12.4.)

(Stratton,

supra, 30 Cal.App.5th at pp. 910-911.)

The

Court of Appeals awarded Hidden Hills its “costs on appeal.” (Opinion p. 29.)

Based on the authority cited above, this does not support or preclude Hidden Hills from seeking attorneys’ fees on appeal.

V.

AUTHORITY FOR ATTORNEYS’ FEES

In

the Motion, Hidden Hills argues that as the prevailing party it is entitled to attorneys’ fees as an item of costs. (Motion p. 5.)

In

opposition, Key acknowledges Hidden Hills’ Bylaws includes an attorneys’ fees provision, but the Bylaws’ attorneys’ fees provision is contrary to the Davis-Stirling Act. (Opposition pp. 11-12.) Key also argues the Bylaws limits attorneys’ fees to recovery on an action involving the “Governing Documents” and the only cause of action this applies to here is the first cause of action. (Opposition p.

12.) Finally, Key argues that “[u]nless specifically designated under the Act, as matter of public policy, [Hidden Hills] has no right to recover attorney fees.” (Opposition p. 12.)

In

reply, Hidden Hills argues it is entitled to attorneys’ fees under the Bylaws, so fees as an item of costs are awardable under Code of Civil Procedure section 1033.5, subdivision (a)(10)(A), and under Civil Code section 5975, subdivision (c), so fees as an item of costs are awardable under Code of Civil Procedure section 1033.5, subdivision (a)(10)(B). (Reply pp. 6-7.) Hidden Hills argues the Bylaws create a contractual right to attorneys’ fees. (Reply p. 7.) Finally, Hidden Hills argues Key’s argument the bylaws “limits the recovery to an action on the ‘Governing Documents’” is meritless because “this Court and the Court of Appeal have already roundly rejected those arguments.” (Reply p. 7.)

Paragraph

14.7 of the Bylaws states:

Any dispute not resolved internally which arises from (i) the Governing Documents, (ii) any occurrence or activity within Hidden Hills, (iii) any alleged error or omission of the Association, or (iv) the management or operation of the community of Hidden Hills shall be submitted for resolution to a retired Judge of the Superior Court (“Arbitrator”), who shall hear the case without a jury and whose decision shall be final and binding. The Arbitrator shall be selected by the parties from any list of retired judges maintained for that purpose by the Superior Court and, if the parties cannot agree, the Court shall appoint a judge to hear the trial and all pre-trial proceedings upon the petition of any party. There shall be no formal discovery except as agreed upon by the parties to the proceedings. The trial shall be commenced in all cases, if possible, within six (6) months from the date the matter has been submitted to the retired Judge.

(White

Declaration Ex. G pdf p. 178.) Paragraph 14.7 subdivision (b) states “[i]n any such proceeding or in any court action, the prevailing party shall be awarded its reasonable attorneys’ fees and court costs.” (White Declaration Ex. G pdf p. 178.)

Civil

Code section 5975, subdivision (c) states “[i]n an action to enforce the governing documents, the prevailing party shall be awarded reasonable attorney’s fees and costs.”

As

relevant here, in reply, Hidden Hills argues that “[t]he Court of Appeal found that all of the fees awarded to [Hidden Hills] were awarded on claims to enforce the governing documents” and “there should be not even a trace of doubt as to [Hidden Hill’s] right to claim its appellate fees. It would constitute erroneous defiance of the law of the case to hold otherwise.” (Reply pp. 7-8.)

The

Court of Appeal determined “that the first, second, fourth, and sixth claims sought enforcement of the governing documents.” (Opinion p. 28.) Key does not persuasively argue how or why the court should deviate from that conclusion.

“When a cause of action for which attorney fees are provided by statute is joined with other causes of action for which attorney fees are not permitted, the prevailing party may recover only on the statutory cause of action.” (Santana v. FCA US, LLC (2020) 56 Cal.App.5th 334, 349.) “However, ‘such fees need not be apportioned when incurred for representation on an issue common to both causes of action in which fees are proper and those in which they are not.’” (Id., brackets removed.) “Moreover, ‘apportionment is not required when the claims for relief are so intertwined that it would be impracticable, if not impossible, to separate the attorney’s time into compensable and noncompensable units.’” (Id., brackets removed.)

The

court determines Hidden Hills is entitled to attorneys’ fees.

VI.

REASONABLE ATTORNEYS’ FEES

Hidden

Hills requests attorneys’ fees incurred on appeal in the sum of \$58,946.25. (Motion p. 10. This sum reflects 97.50 hours of fees. (White Declaration Ex. A pdf pp. 16-21.) Counsel Johnny White billed at rates ranging from \$550 to \$595 per hour. (White Declaration ¶ 3.) Paralegal Jean Lee billed at \$225 per hour. (White Declaration ¶ 4.)

In

opposition, Key argues the court should deny the request for attorneys' fees because the declaration provides insufficient evidence for the court to determine the time spent was reasonable and necessary. (Opposition p. 14.) Key argues the court should set an evidentiary hearing to establish the reasonableness of the fees. (Opposition p. 15.) Key further argues that of the six claims, only the first claim was to enforce the governing documents. (Opposition pp. 15-16.) Finally, Key argues Hidden Hills' counsel engaged in block billing. (Opposition p. 14.)

In

reply, Hidden Hills argues Key has not met her burden of showing the fees should be reduced. (Reply p. 10.)

The

court uses the lodestar method to calculate the "number of hours reasonably expended multiplied by the lawyer's hourly rate." (EnPalm, LLC v. Teitler (2008) 162 Cal.App.4th 770, 774.) "The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided." (Id.) "In short, after determining the lodestar amount, the court shall then 'consider whether the total award so calculated under all of the circumstances of the case is more than a reasonable amount and, if so, shall reduce the section 1717 award so that it is a reasonable figure.'" (Id.) The court considers factors including the nature and difficulty of the litigation, amount of money involved, skill required and employed, attention given, success or failure, other circumstances, and the necessity for and nature of the litigation. (Id.)

The

court has reviewed the billing records attached to White's declaration and finds the hourly rates and hours billed are reasonable. (White Declaration ¶ 7; Ex. A pdf pp. 16-21.)

VII.

CONCLUSION

For

the foregoing reasons, the Motion is granted.

Dated: September
8, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court